

[doc. web n. 10085732]

Provision of November 14, 2024

Register of Provisions

No. 698 of November 14, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, Regulation);

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
the Code regarding the protection of personal data
(hereinafter, Code);

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter, Guarantor Regulation
No. 1/2019);

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation
No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

Reporting Attorney Guido Scorza;

PREAMBLE

1. Introduction.

In the context of a series of checks carried out
ex officio by this Authority, a verification conducted
on XX revealed that the Municipality of Maddaloni
(hereinafter, Municipality) had not communicated the
contact details of the Data Protection Officer (hereinafter, DPO)
to the Authority – using the dedicated channel
available at the page [https://servizi.gpdp.it/](https://servizi.gpdp.it/comunicazionerpd/s/)
comunicazionerpd/s/ – as required by Article 37, paragraph 7,
of the Regulation. A simultaneous check
conducted on the Municipality's official website, however,
confirmed the publication of the contact details of the

DPO, which is also required by the same provision.

Therefore, with a note dated XX (prot. n. XX), the Office, based on the elements acquired and the checks carried out, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for failing to communicate the contact details of the DPO to the Authority, in violation of Article 37, paragraph 7, of the Regulation.

With a note sent on XX (prot. n. XX), the Municipality submitted its defense writings, in which it admitted the failure to communicate and provided a description of the context in which this violation occurred, as well as declared that it had proceeded to communicate the contact details of the DPO – an obligation that was indeed fulfilled on the same date.

2. Outcome of the investigative activity.

Pursuant to Article 37 of the Regulation, the data controller (and the processor) “[designates] systematically a data protection officer whenever: a) the processing is carried out by a public authority or by a public body, except for judicial authorities when exercising their judicial functions” (paragraph 1, letter a)) and “publishes the contact details of the data protection officer and communicates them to the supervisory authority” (paragraph 7).

Furthermore, in the Guidelines on Data Protection Officers (DPOs), adopted by the Article 29 Working Party on data protection on December 13, 2016, and amended on April 5, 2017, it is added that “Article 37, seventh paragraph, of the GDPR requires the controller or the processor to publish the contact details of the DPO, and to communicate the contact details of the DPO to the relevant supervisory authorities. These provisions aim to ensure that both the data subjects (within or outside the entity/body that is the controller or processor) and the supervisory authorities can contact the DPO easily and directly without having to go through another structure operating within the controller/processor” (paragraph 2.6).

The Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector, adopted by the Guarantor on April 29, 2021, with provision No. 186 (doc. web n. 9589104), specifies that “Regarding communication to the Authority, it is emphasized that the Guarantor has made available a specific online procedure not only for communication but also for the variation and revocation of the name of the designated DPO. This procedure represents the only contact channel that can be used for this specific purpose and is available at the page <https://servizi.gpdp.it/comunicazionerpd/s/>, where the

specific instructions and related FAQs are also provided: furthermore, attention is drawn to entities to correctly enter the required data, such as identifying the data controller (the entity as a whole, and not the legal representative) and filling in the tax code of the administration (and not the VAT number, or the tax code of another subject)” (paragraph 7). In this case, the failure to communicate the contact details of the DPO has occurred.

to the Authority, the violation of Article 37, paragraph 7, of the Regulation has been established. In light of the evaluations mentioned above, it is noted that the statements made by the Municipality during the investigation – for the veracity of which it may be held accountable pursuant to Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the proceedings and are insufficient to allow for the closure of the present proceedings, as none of the cases provided for by Article 11 of the Regulation of the Guarantor No. 1/2019 apply. Therefore, the preliminary assessments of the Office are confirmed, and the violation of Article 37, paragraph 7, of the Regulation is noted due to the failure to communicate the contact details of the DPO to the Authority.

However, since the Municipality has proceeded to make the aforementioned communication following the initiation of the proceedings by the Authority, the conditions for the adoption of corrective measures pursuant to Article 58, paragraph 2, of the Regulation do not exist.

3. Adoption of the injunction order for the application of the administrative pecuniary sanction (Article 58, paragraph 2, letter i), and Article 83 of the Regulation; Article 166, paragraph 7, of the Code). The Guarantor, pursuant to Article 58, paragraph 2, letter i), and Article 83 of the Regulation, as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the website of the Guarantor pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019).

In this regard, in the specific case, the violation of the cited provision is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 4, of the Regulation. The aforementioned administrative pecuniary sanction, imposed based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation, with respect to which the following is observed. The failure to communicate the contact details of the DPO by the Municipality negatively impacted the possibility for the Authority to contact the DPO easily and directly. On the other hand, it is noted that the Municipality has taken steps to remedy the violation and that there are no previous relevant violations committed or previous measures pursuant to Article 58 of the Regulation against it. It is also noted that the violation is of a negligent nature.

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €2,000 (two thousand) for the violation of Article 37, paragraph 7, of the Regulation as the administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive. It is also deemed that the accessory sanction of publication on the website of the Guarantor of this provision, provided for by Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Guarantor No. 1/2019, should be applied, as it concerns the failure to comply with an obligation that has been mandatory for more than six years. Finally, it is deemed that the conditions set forth in Article 17 of the Regulation of the Guarantor No. 1/2019 apply.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

pursuant to Article 57, paragraph 1, letter a), of the Regulation, declares the conduct of the Municipality of Maddaloni, described in the terms of the motivation, consisting of the violation of Article 37, paragraph 7, of the Regulation, unlawful;

ORDERS

the Municipality of Maddaloni, located at Piazza Matteotti No. 9, Maddaloni (CE) – CF 80004330611, pursuant to Article 58, paragraph 2, letter i), and Article 83 of the Regulation, to pay the sum of €2,000 (two thousand) as an administrative pecuniary sanction for the violation indicated in the motivation;

COMMANDS

the Municipality of Maddaloni to pay the sum of €2,000 (two thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to Article 27 of Law No. 689/1981. In this regard, it is noted that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to Article 166, paragraph 8, of the Code (see also Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011);

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of the injunction order on the website of the Guarantor;

pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the website of the Authority;

pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority.

provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, Article 152 of the Code, and Article 10 of Legislative Decree 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of notification of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 14, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei